

THE LAW OF INHERITANCE IN TANZANIA



A STATUS REPORT

Edited by

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WOMEN AND LAW IN EAST AFRICA

The Law of Inheritance in Tanzania

A Status Report

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Errata

Please note that the name
Mukogoye on the cover of this
book should read *Mukoyogo*. We
apologise for the error.



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Introduction

Tanzania is constitutionally a plural society in so far as the life of its people is regulated by various legal systems. In matters of succession or inheritance three systems operate hand in hand. For the bulk of the African Community, be they religious or non-religious, their affairs are presumed to be regulated by customary law except where there is an express indication that any other law ought to apply. Those who profess Islam are governed by Islamic law except where by applying the mode of life test it can be shown that customary law is the appropriate law. Europeans and some other communities for example., of Asian origin who are not Moslems, as well as those Africans whose mode of life no longer conforms to customary practices, are governed by the Indian Succession Act, 1865.

As will be indicated elsewhere, the position of women in inheritance/succession matters seems to be somewhat favourable to females under the Indian Succession Act, 1865 and to a certain extent secure under Islamic law, at least in theory if not in practice. It is under customary law that the position of women seems to be unfavourable.

A: EXISTING LAWS

The State of Law

The law governing succession in Tanzania (Mainland) is as diverse as the Tanzania community itself. There are four competing legal systems under which a deceased's estate may be administered especially when one dies without leaving a will. These systems of law are Statute Law, Customary Law, Islamic Law and Hindu Law. The connecting factors to these legal systems are ethnicity, religious affinity or race. The multiplicity of legal systems inevitably leads to a problem of internal conflict of laws. As a consequence, there will be the question of choice of law in the distribution of a particular deceased person's estate.

It will be noted that when reference is made by writers to statute law they imply a discussion on the Indian Acts (Application) Ordinance, Cap. 2 which was made applicable to Tanzania (Mainland) by the Indian Succession Act, 1865 and the Hindu Wills Act, 1870. In fact, there are many pieces of legislation in Tanzania (Mainland) which regulate the question of succession/inheritance at a procedural level and it is important to take note of their existence and what they provide before a detailed examination of the weaknesses arising therefrom.

Statute Law

The relevant law is the Indian Succession Act of 1865 which was made applicable to Tanzania by the Indian Acts (Application) Ordinance, Cap. 2. Under section 24, a man is considered to die intestate in respect of all property of which he has not made a testamentary disposition which is capable of taking effect.

There are two types of intestacy:

(i) **Total Intestacy:**

- (a) Where a person dies without leaving a Will at all; or
 - (b) Where a person dies leaving a defective Will. For example, where the said Will is not attested according to the law; or
 - (c) Where a Will becomes in-operative. For example, where a legatee predeceased the executor (intestacy on the beneficial interest but not as a legal estate).
- (ii) **Partial Intestacy:** This may occur where only a part of the beneficial interest is disposed of.

Where a person dies intestate such property devolves upon wife or husband or upon those who are of the kindred of the deceased (section 26). Succession to such an estate is effected according to the following basic rules prescribed by the Indian Succession Act, 1865:

(a) Section 27 provides that:

"Where the intestate has left a widow, if he has also left any lineal descendants, $\frac{1}{3}$ of his property shall belong to his widow and the remaining $\frac{2}{3}$ shall go to his lineal descendants... if he has left no lineal descendants, but has left persons, who are of kindred to him, one of his property shall belong to his widow, and the other shall belong to those who are of kindred to him... If he left none who are of kindred to him, the whole of his property shall belong to his widow."

(b) Section 28 provides that:

"Where the intestate has left no widow, his property shall go to the lineal descendants or to those who are kindred to

him but not being lineal descendants, according to the rules herein contained; and where he has left none who are of kindred to him, it shall go to the crown (state)."

- (c) Section 29 and 30 provide that:
"The rules for the distribution of the intestate's property after deducing the widow's share (if he has left a widow) amongst his lineal descendants, are where the intestate has left surviving him a child or children, but no more remote lineal descendants through a deceased's child the property shall belong to his surviving child, if there be only one, or shall be equally divided among all his surviving children."

The above rule also applies where the intestate is survived by no children but grandchildren and great grandchildren. The deceased's father, mother, brothers and sisters, inherit only where there are no lineal descendants surviving him. They share half of the estate where there is a widow surviving. The husband surviving his wife has the same rights in respect of her property, if she dies intestate, as the widow has in respect of her husband's property, if he dies intestate. (Indian Succession Act, 1865: Section 43).

The Indian Succession Act, 1865 does not apply to the estate of a deceased Moslem. It applies to Christians¹ and all those of European origin. Illegitimate children are excluded from inheriting their fathers' estate, but they may only inherit from the estate of their deceased mothers.

Crucially, the main consideration in this Law is the welfare of the deceased's immediate family members and dependants. The Law is more inclined towards equality of division among the heirs of the

same degree. It does away with the distinction between male and female children of the deceased. They inherit equal shares.

The Law does not make any distinction on succession to movable and immovable property, provided that the said properties are situated in the territory.

Customary law

A number of pieces of legislations listed below provide for the application of Customary Law in matters of Succession/Inheritance. Customary Law may be defined to mean that law which is either written, declared or unwritten but is recognised by the community as having the force of law.² It is applicable to African members of the community irrespective of their religious affiliation.

In Tanzania (Mainland) there are as many customary laws as there are ethnic communities. The customary rules of testate and intestate Succession are embodied in the Local Customary Law (Declaration) Order (No.4) of 1963 and they apply to all local communities in the Districts where the declaration was specifically extended.³ Significantly, these rules apply only to patrilineal communities which are 80% and not matrilineal communities which are 20% in Tanzania (Mainland).

Very little is known in relation to Customary Law rules of Inheritance/Succession vis-a-vis the matrilineal communities⁴. To that extent they remain disadvantaged because the Customary Laws rules applicable in those communities remain to be proved in the court of law as the question of fact whenever they are invoked.

The main heirs of the deceased estate are ten in number; children (sons and daughters), father, paternal uncle and aunts, husband or

wife. Where the deceased leaves a son or sons and daughter or daughters, they will inherit all of this property exclusively.

Inheritance is in three degrees:

- (i) first degree heirs inherit first and get the biggest share of inheritance. Normally, the first son from the first house is the heir in the first degree.
- (ii) second degree heirs include all other sons and they inherit a bigger share than daughters who are, normally, heirs in third degree.
- (iii) third degree heirs are, normally, the daughters of the deceased. Their share of inheritance is, normally, smaller than the heirs in the other two degrees. Where the deceased leaves no sons then the daughter of the first house will be the heir in the first degree.

Rules 27 and 28 provide that a widow has no share in her husband's estate, if there are issues of the union, and the husband cannot inherit from his wife who dies intestate, unless the wife left no children or any member of her own family.

Distribution of property among heirs in the second and third degree is effected according to their ages. The older one gets more than the young ones. Males get bigger shares than females irrespective of their ages.

Illegitimate children are excluded from inheriting their father's estates, but they will inherit from the estate of their mother who dies intestate. Furthermore, illegitimate children will only inherit if legitimized in the second degree, if they

are females. However, illegitimate children will also inherit where there is a Will of the deceased father.

Where the deceased left no children or grand children, his full brothers and sisters will inherit in the first degree, second brother in the second degree and all the sisters will inherit in the third degree.

Under the Local Customary Law Declaration Order, males inherit movable and immovable properties absolutely, but females inherit immovable property only for their use during their life time. They cannot sell unless there are no male members in the family. However, the High Court in the case of BERNADO EPHRAHIM VS. HOLARIA PASTORY AND GERVAZI KAIZIREGE⁵ Mwalusanya, J. declared this custom as discriminatory and unconstitutional.

However, the situation that is currently prevalent in the urban areas is different because of the existence of acquired property (leases).

Rule 24 provides that where the deceased person has distributed part of his estate *inter - vivos* (while he is living) this portion will be taken into account during distribution after his death. The Local Customary Law (Declaration) Order, 1963 (Law of Persons) GN 279 of 1963 provide that the widow is asked to choose whether she wishes to live as a wife with one of the deceased husband's relatives. If she refuses the offer, no bride wealth is to be paid back and she is free to return to her relatives. On the other hand, Rule 77 (1) (Law of Persons) provides that a childless widow is entitled to half of the property acquired during her married life with the deceased after the debts of the deceased have been repaid. In practice, this is never put into effect.

Islamic Law

A number of pieces of legislation provide for the application of Islamic Law in Tanzania (Mainland) in matters relating to succession/inheritance where parties are members of the Islamic faith. The following are the pieces of legislation:

- (i) The Succession (Non-Christian Asiatic) Ordinance (Cap.122) Section 6(1).
- (ii) The Administration (Small Estate) Ordinance (Cap. 30) Section 19 (1) (a).
- (iii) The Judicature and Application of Laws Ordinance (Cap. 453) Section 9.
- (iv) The Magistrates Court Act No. 2 of 1984 Section 18.
- (v) The Law of Marriage Act No. 5 of 1971.
- (vi) The Mohamedan Estate (Benevolent Payments) Ordinance, Cap. 25
- (vii) The Re-statement of Islamic Law, GN. 22 of 1967.
- (viii) The Wakf Commissioners Act, Cap. 109.

The application of Islamic law is not automatic because the laws create a presumption that where a deceased person is an African or a member of an ethnic community, Customary Law will apply, except where the following conditions have been fulfilled to the contrary:

- (a) the deceased person was a Mohamedan,
- (b) that the deceased person had through written or oral declaration provided that Islamic Law should apply in the division of his estate,
- (c) that the deceased person's acts or manner of life show an intention that his estate should wholly or in part be administered in accordance with Islamic Law.

Hindu Law

Hindu Law of Succession/Inheritance, that is, the Hindu Wills Act, 1870 was brought into Tanzania (Mainland) through the Indian Laws (Application) Ordinance (Cap.2) and made to apply to the Hindu Community. However, the paramount difficulty in the application of Hindu Law of Succession/Inheritance is its uncertainty.

These are:

- (i) the mode of life test; and
- (ii) the intention of the deceased.

(i) The mode of life test:

When the question is to choose between application of statute law or Customary law, courts have been employing the mode of life test to make that choice. This test finds its root in the Judicature and Application of Laws Ordinance, Cap. 453. Section 9(1) (b) which provides that:

"Customary Law shall be applicable to, and courts exercise jurisdiction in accordance therewith, in matters of Civil nature - "relating to any matter of status or succession to a person who is or was a member of a community in which rules of customary law relevant to the matter are established and accepted;... except in any case where it is apparent, from the nature of any relevant act or transaction, manner of life or business, that there is or was to be regulated otherwise than by customary law..."

The case of RE INNOCENT MBILINYI, deceased (1969: HCD M 283) illustrates how this test is applied by courts. The deceased was a Ngoni married to a Chagga woman under Christian marriage rites. Both were staying in Dar es Salaam. The deceased had left Songea when he was still young, about 7 years old. He was educated outside Songea or Moshi. They had three children of the marriage. Innocent died intestate and the matter was brought before the High Court to determine which law was to apply in the administration of deceased's estate. The widow argued that statutory law should apply in administration of the deceased estate so that she could benefit. On the other hand, the brother of the deceased argued against

application of Ngoni customary law in which case the widow would get nothing out of the estate. In the High Court, Georges, C.J. (as he then was) held that: "the deceased had abandoned the customary way of life in favour of what may be called a Christian and non-traditional way. There is satisfactory evidence that he was to a large extent alienated from his family and that his children had no connection whatsoever with them". Therefore, statutory law was held to apply.

In another case of **GEORGE S/O KUMWENDA vs FIDELIS NYIRENDA** (1981:TRR 211) the deceased Martin Kumwenda was a Malawian national living in Dar es Salaam and at his death he left a house. The deceased's wife wanted to inherit a house under statutory law but the deceased's brother wanted customary law to apply so that the wife would not inherit the house, but that it would be sold and the proceeds be distributed among the children. The Primary Court invoked the application of customary law and on appeal the District Court overruled the Primary Court and opted for the application of statutory law. In the High Court Kisanja J. (as he then was) ordered a retrial because the two courts below had arbitrarily made a choice of law without first investigating the mode of life of the deceased. Hence, in terms of section 89(2) of the Probate and Administration Ordinance Cap. 455, the records were sent back to the Primary Court, for administration and directed that Primary Court should exercise original jurisdiction in accordance with provisions of the Administration (Small Estate) Ordinance, Cap. 30.

However, in the case of **ABDALLA SHAMTE VS. MUSSA** (1972: HCD M. 9) a presumption is made to the effect that in the case of an African living in the villages or rural areas, the law applicable to the administration of his estates is Customary law rather than Statutory law.

(ii) The intention of the deceased test:

When an African is also a Moslem, there is a problem as to which law is applicable between Customary and Islamic law. The factors which are used in making the choices are the written, oral declarations, acts, intention or manner of life of the deceased. That is, the intention of the deceased test. This test is basically founded in the Administration (Small Estate) Ordinance, Cap.30 (and judicial precedents). Section 19(1) (a) provides *inter alia*: "that estate of a member of a native tribe shall be administered according to the law of that tribe unless the deceased at any time professed the Mohamedan religion and the court exercising jurisdiction over his estate is satisfied from the written or oral declarations of the deceased or his acts or manner of life that the deceased intended his estate to be administered according to Customary law."

Therefore, the thinking that, when one dies professing Islam, then Islamic Law will automatically apply in the administration of his estate is erroneous. For African Muslims, preference will be given to Customary law, unless the deceased is a Swahili. A Swahili is defined to mean, the Bantu people inhabiting Zanzibar and adjacent Coasts, (Kiswahili being their language).

This test under section 19(1) (a) of the Administration (Small Estates) Ordinance Cap.30 will only apply to small estates where Probate and Administration Ordinance, Cap. 445 also applies. Even if an estate in question does not fall under the ambit of this provision the same test will be applied through judicial precedents. This was the position in the landmark case of *RE ESTATE OF THE LATE SULEMAN KUSUNDWA* (1965: EA 247).

In this case, the deceased was a Nyamwezi and married the applicant in this suit (one of the four wives of the deceased) according to Islamic law rites. The applicant was excluded from the "Will" of

the deceased who purported to leave the entire estate to his nephew. For the applicant to inherit from the deceased's estate entirely depended upon which law was applicable in the circumstances. The wife was contending that Islamic law did apply and the Administrator General was contending that it was Nyamwezi Customary law that was applicable.

Sir Ralph Windham, C.J. found it as a fact that this case did not fall under the ambit of section 19(1) (a) of the Administration (Small Estates) Ordinance Cap. 30 and so he resorted to judicial authorities on choice of law. In this exercise he came to an agreement with the conclusion of Spry, J. in the case of *HUSSEIN MBWANA VS. AMIRI CHONGWE*, (Civil Appeal No.1 of 1963 (T) unreported)

When he stated that:

"I hold, therefore, there are two systems of law which may apply in Africa Muslims Community, religious law in matters peculiarly personal such as marriage, and customary law which may apply in all spheres of life"

Sir Ralph Windham added that it cannot be held that while the rights of an African Moslem wife at and during her marriage are to be governed by Muslim Law, her rights of inheritance upon her husband's death are to be governed by her tribal custom, which may give her no such rights.

The status and right of a wife after her husband's death must be governed by the same corpus of law as governed them before his death. Her rights of inheritance are bound up with her rights, or the comparative lack of them, during matrimony, and are in the nature of counter-balance or safe-guard to her when she loses her protector. The one is as much a matter of law as the other, and they must stand

or fall together. He held that the law to be applied in the distribution of the deceased's estate is Muslim law. In another case, in the matter of THE ESTATE OF THE LATE SALUM OMARI MEREMI (1973 LRT No. 80) the deceased was Hehe Moslem. He was an army officer. He married a member of his own community and contracted a civil marriage. He was a practising Moslem. Justice Mfalila held that applying mode of life test (that he was a practising Moslem) the deceased had intended his estate to be administered according to Islamic Law and not Hehe Customary Law, As the deceased's manner and way of life was far removed from his tribal customs.

At the level of inheritance to the deceased person's estate the apportionment of the said estate is in three degrees as it was discussed earlier. The males are accorded bigger shares when compared to female counterparts irrespective of their age and ability to care for the family.

In terms of administration of the estate the priority is given to male heirs and not female heirs. The difference here is based on the notion that the property (especially land or immovable property) belongs to the clan. Given the fact that females are likely to get married elsewhere, landed property must be left in the care of male members of a given clan.

The rights of female heir to landed property under Customary law are limited to use for life⁹ and not disposition. This position is not in accordance with the provision of the Constitution of the United Republic of Tanzania, 1977 (as amended by Act 15 of 1984) nor the provision of the law of Marriage Act, No.5 of 1971 which recognize equality of right to acquisition, ownership and disposition of property irrespective of gender.¹⁰

Under Customary Law, the inheritable property may refer to clan land usually situated in rural areas. This law has been extended to apply to movable and immovable properties obtainable in urban areas whose acquisition might have involved the joint efforts of the spouses in their joint life time.

(c) Islamic Law

Islamic Law is linked with the Mohamedan beliefs to the extent that it is embodied in the Koran and is in no way influenced by changes in society. Islamic law is often equated or confused with Customary law and this inevitably gives rise to a conflict of laws.¹¹

There are conditions imposed by Statutory provisions in order to determine at what point Islamic law should be applicable for a given deceased person's estate. Those conditions include marriage, way of life, (what one professed and practised at the date of his/her death) and the intention of the deceased person at the time of his/her death as to the law to be applied in the administration of his/her estate.

Under Islamic Law, a non-Moslem is not entitled to inherit the estate of a deceased Moslem even where, for example, a Moslem is married to a non-Moslem wife. A Moslem cannot inherit from a non-Moslem by birth. Illegitimate children have no entitlement to inheritance.

There are fixed and unfixed shares of inheritance which are gender based (that is, while daughters are entitled to half, sons would get one half and widows are entitled to 1/8 of the total estate of the deceased irrespective of their contribution or number). However, thinking within Islamic Law is not singular. There are various schools of thought within Islamic law, for example, Shi'ite, Sunni etc.

Enforceability of Rights:

Forums for External Intervention

Original jurisdiction in the administration of deceaseds' estate is vested in primary court by virtue of sections 14 and 15 of the Magistrates' Courts Act, 1984.¹² Such jurisdiction is specified under sub-section (2) of section 14 which empowers the Chief Justice to specify such jurisdiction. This is done by the Order of the Chief Justice published as Government Notice No. 320 of 1964 which states in rule 2 thus:

"Every primary court shall have jurisdiction in the administration of the estate of a deceased person, if:

- (a) the deceased, at the time of his death, had a fixed place of abode within the area of jurisdiction of the court; and
- (b) the law applicable to the administration or distribution of, or the succession to, the estate is customary or Islamic Law and the estate is not one which the provisions of the Marriage, Divorce and Succession (Non - Christian Asiatics) Ordinance apply."

Thus, under this Order of the Chief Justice, Primary Courts have original jurisdiction to entertain matters of administration of a deceased's estate, provided the applicable law is Customary or Islamic law whether or not the subject matter is registered land or not¹³. It will be recalled that the 1944 Rules designated Clan Councils to have the original jurisdiction in administration matters and the paternal uncle or eldest son to be the administrator (Rule 18). As both the order and the 1944 Rules are subsidiary legislation, it could be argued that neither one takes precedence over the other.

The practice in Bukoba District, however, is that matters falling under customary law and land tenure start in the clan council and only reach the primary court, if at all, by way of appeal. This practice

was confirmed by the interviews carried out for this study with Primary Court magistrates, the clan heads and women litigants in clan councils and primary courts as well as by the records of these two institutions read in connection with the study.

The Clan Council

What are considered important functions of the clan council were elaborated in the interviews with heads of clan councils. They were asked how they processed the disputes that came to their councils. In certain cases, there is a *Halmashauri* (Clan Executive Council) which meets wherever there is a matter that needs the attention of the clan, and decided whether or not to call for a clan meeting.

On the issue of determining the criteria they apply in deciding when a matter was important enough to merit the attention of the Clan Council, Ta Benedicto Magwenda had this to say:

Much "depends on the type of matter. Inheritance, for example, is a clan matter. When an elder member of the clan dies, the whole clan has to take part in reinstating the new heir and execute his Will. If there are any disagreements, claims up of debt, etc., they have to be raised on that day. The clan has to deal with it on the spot and, if necessary, set the schedule for setting it. This is the succession to inherited land¹⁴. Most of the *ebibanja* (shambas) and *enyeya* (fallow land) (emphasis added).

The account of other clan heads was similar. They were then asked how women featured in these cases. Women were said to feature as daughters of the clan (*abaharakazi*), e.g., a widow who is a daughter coming to clanland with children. Some clan heads had heard cases like these recently. Regarding men's disputes in their clan councils, they said they are mostly disputes with other men, particularly

disinheritance and banishment of their children as elaborated by Mzee Rwiza below:

It may be a case of disinheritance, deprivation of the rightful heir, or banishment of a child by one of our members. Here also the clan will step in. It is in the interest of the clan that its members are kept in harmony. For example, we have had a similar case recently of banishment. It was settled amicably and it concerned men.

On what people do if they are not satisfied with clan judgement, one interviewee responded:

"We let them decide what they want to do about it but we remain united and firm. If the dissatisfied party goes to court, we say go *iloko*. We only support the winner and would only give evidence in support of the one who has accepted our judgement, on behalf of the whole clan.

He and other clan heads insisted that they do not send anybody to court, which they criticised for what they saw as interference in clan matters. But women litigants who had by passed the clan council and had gone to the Primary Court had been sent back to the Clan Council. Moreover, the popular view was that courts tend to put more weight on the evidence and position supported by the clan. This observation was made in another study on Primary Courts in Arusha and Morogoro regions (Du Bow: 1973).

According to the elders, keeping clanland in the clan is the primary responsibility of the clan leader. Even after failure to settle a dispute, if clanland is involved, they advise and send a close relative to be joined to a court case. They were happy that almost always the court calls the clan elders to give evidence in court.¹⁵

The biggest perceived threat of clan interest comes from the children (*abaiwa*) of "the daughter of the clan" (*abaharakazi*). They are considered the prime threat. This happens when the *abaharakazi* want to sell the *kibanja* they have inherited, so that they can buy another *kibanja* for their sons in order to provide for them. When asked why they suspected women of this, Mzee Rweikiza said that it was an open secret and sensible from the *abaharakazi's* point of view. Since maternal nephews and niece *abaiwa* could not inherit clanland, it was only natural for a daughter to transfer her investment (*amanige*) in the property to another where she could bequeath it to her children, otherwise "where would the children eat (*abana balilyaa*)?", he asked. However, in spite of such obvious sense, they insisted that such transfers have to be carefully supervised by the clan because they were detrimental to the continuity of the clan. For that reason, the clan frowns at a father who leaves clanland to a daughter.

The clan members are free to bequeath their property as they wish. Some apportion inheritance to both male and female children separately. Some would leave their daughter one symbolic coffee tree (*ayasika ekishasi*) as required by traditional custom. This is security for maintenance in natal home against destitution. Other fathers may leave more than a coffee tree. The clan leaders had examples of all these instances. They seemed to be aware of the changing needs of a daughter. Indeed, one respondent noted, "These days you cannot simply assume the husband will take care of your daughter (*kumusinja omushaija*)". Yet they thought only those who are well off should contemplate such an action (*kabilio*).

"If one is well off, he can even leave his daughter a *kibanja* that does not belong to the clan. But there is always disappointment of inheritance of *ekibanja* with a daughter. It is the ever present threat of the latter changing ownership from one clan to another."

When one elder was asked how he perceived protection of the children of the daughter (*abaiwa*) who have grown up with their mother on clanland, he said *omwiwa* could inherit land if it is just and fair. For example, if such nephew had no relatives on his father's side (*taina babo*) or if the *kibanja* is self-acquired, not clanland, i.e., it was not inherited in clan lineage of succession. He continued:

I think nobody in their right mind would throw out their daughter or her children if she had nowhere else to live. But then, some nephews want to use force. Some go as far as claiming they were also born there. You see them laying bricks wanting to build a permanent house. But every child has a father. It would be a different matter if the nephew's father was a nobody that our daughter met on the street. This is rare though. The clan ought to do something before the matter gets out of hand. We had a case like this recently where our Clan Council took to task the alleged clan of the children but the matter was resolved amicably by parties. We had already planned for a joint clan council between the two clans to see who had the responsibility of providing for the children.

He explained that illegitimate children have to be affiliated before they grow up and need to start families of their own. This is obviously something a single Haya mother would have to consider before she decided to settle in her natal home with her children. Sooner or later they are likely to be considered, if not declared *persona non grata*.

A similar case happened in Bugabo during the research period. A young woman in her twenties had been "adopted" by a family headed by two women. Her late father had been a friend to the late male head of the adopting family. Her father had been a latterday polygamist who had married her mother from a neighbouring district,

Ngara, in search of a male child. But her mother absconded a few months after she was born in the mid-sixties. Her father was looking for "assistance" and/or advice in caring for his daughter among relatives and friends, when he landed on a friendly family that not only agreed to help but also to raise the child. The adopting family at the time was composed of a widow and a divorced daughter both of whom lived in the same village as the girl's father. There was another daughter who was still married in a nearby village where she resided and had several children. The divorced daughter had no children of her own. She, her mother and married sister had succeeded in acquiring usufruct rights in the *kibanja* in which they resided after a court case in the late 1950s. They had been assisted by the married sister's husband in acquiring the rights.

On learning that the infant girl had been abandoned, the childless daughter offered to look after the girl and brought her home to her mother on the same day. She grew up there and went to school. However, she got pregnant in the final year of primary school education. She did not get married but came to live with her adoptive parents. After some years they gave her money to buy a plot of land and develop her own *ekibanja* home in Muleba District (where land was available). However, this proved difficult and she has not succeeded 10 years later. This is clearly an example of the difficulty one faces in converting fallow land into *ekibanja* single handedly. It is also an indicator of why women who have gone through this process in marriage feel strongly about retaining their rights in the landed property they have thus created.

In the meantime, she had given birth to a son and three daughters. After a quarrel with the married daughter over allocation of fallow land, on which she wanted to plant seasonal food crops for her mother, the married daughter called a clan council. The clan council met in a different village, on the caller's urging, for the sake of having

neutral ground. The council gave the adopted daughter three months to take her children to their father or else go to her own father's *kibanja* in her *mwate* (share). Two next male kin (cousins) of the daughter were appointed to follow up the implementation of this clan decision, like notifying the adopted daughter, and ensuring that she leaves. She left tearfully to the dismay of the childless daughter (adoptive mother) who had come to regard the adopted daughter as the daughter she never had.

The above case is illustrative of four issues in respect of the practice of women's rights in natal land. The first is the supervisory role played by the clan over clanland heirs. The second is that the usufruct rights of female heirs are less autonomous than the right enjoyed by male heirs. The childless woman's share of the *shamba* was held jointly with her mother and sister because they were women. It is doubtful whether she would have been able to bequeath her share of the *shamba* to her adoptive daughter if she was male. But it is certain that she would have a separate piece of land where she would live autonomously without clan interference.

The third issue is that of providing a forum for settlement of important land disputes, informally and expeditiously, as well as supervising the implementation of resultant resolutions. Finally, there is the detestation of maternal children (*abaiwa*) growing up on clanland, and why it is important for women with children to transfer their right in clanland by sale.

A case of clan against clan regarding affiliation of children was reported in Katoma. It was a case of the *Abanyuma* clan against the *Abaganga* clan but it was reportedly dismissed by the joint clan council because the parties did not want to pursue it further. It also involved women. It was a case of a daughter wanting to inherit her deceased mother's *shamba*. The deceased mother's clan had appealed

to the daughter's clan to stop her, by affiliating her properly, to what should have been her father's family. The daughter gave up.

The clan elders were also asked how they honour Wills in the process of installing the heir. They were of the unanimous view that they follow it to the letter. But some cautioned that it had to conform to custom. If the same is legitimately contested by other interested parties, the clan council has power to order a variation of the Will. This may be contested by some people and it is at this juncture that they may go to court. Again, the clan head would stick to the decision and only give evidence in support of the clan's directives.

They were also asked for their views of a person who dies leaving a Will which left property to his daughter or direct division in equal shares. There were mixed feelings about this question. However, they agreed in principle that this was legitimate and would be honoured. Still, they saw problems resulting from those relatives whose interests, and rights, would have been compromised by such a Will. Hence the clan council would have to be careful to iron out this conflict from the very beginning, and conceded that it was not always easy.

Mzee Mangwenda noted that proper execution of Wills was becoming the concern of many people. He recalled a recent case in which one of his clan members died and left his Will on a tape. The tape was played in Bukoba District Court and he gave evidence in that case. The testator had been concerned that the clan council would vary his Will or accept challenge over its authenticity. None theless, the court held that the tape was inadmissible because the deceased was probably forced to make the statement and there was no way to prove otherwise. He had reportedly said in the tape that he wanted his property divided equally amongst all his children, both male and female, with full right to sell their shares if they wanted.

The Formal Courts

It was noted above, that the original jurisdiction for inheritance of property falling under customary law lies in primary courts. On the face of it, there does not seem to be any statutory obligation for designating clan councils as compulsory fora of first instance. According to the Fifth Schedule of the Magistrates' Courts Act, No.2 of 1984, the primary courts' jurisdiction in the administration of a deceased's estate "where the law applicable to the administration or distribution or the succession to the estate is Customary law or Islamic law" is limited to not appointing an administrator - where the Probate and Administration Ordinance or the gross value of the estate does not exceed shillings one thousand (Shs. 1,000/=), unless in the latter case the court considers it necessary "to protect the interests of the creditors or beneficiaries" (s. 1(2) (a) (b)).

Yet the administration of deceased's estate falls in the category of civil jurisdiction. The Fourth Schedule to the said Magistrates' Courts Act makes provisions relating to the civil jurisdiction of primary courts under Section 2 thereof thus:

"(2) In the exercise of its customary law jurisdiction a primary court shall apply the customary law prevailing within the area of its local jurisdiction, or if there is more than one such law, the law applicable in the area in which the act, transaction or matter occurred or arose, unless it is applicable but it shall, subject to rules of court, apply the customary law prevailing within the area of its local jurisdiction in matters of practice and procedure to the exclusion of any other customary law."

This clear and mandatory provision specifies that primary courts have to apply the living practises of custom of a given community. That is, they should "discover" the customary law practised by people

in the locality. It may be said, therefore, that it is only prudent that (primary) courts should insist on reference to clan councils for inheritance disputes based on customary law.

This requirement may be a positive way of ensuring that the custom being enforced by the primary court is the same as those being practised by the community in which the said court is situated. Such a requirement would also give custom the flexibility that it is meant to have (James & Fimbo 1973: 185) by allowing a community or particular lineage to change its norms whenever it suits their contemporary needs. Thus litigants in inheritance disputes find themselves in the clan council not because they necessarily opt for it, but because in practice it is a mandatory requirement. Further, primary courts themselves were found to have referred women litigants in inheritance disputes who went to court straight away back to the relevant clan councils. The reason for this reference is not inheritance *per se* but because inheritance in Bukoba District falls under elaborate customary regulation. It could be argued that the requirement of two assessors sitting with a primary court magistrate and who are required to advise the latter on issues of custom and, which advice is binding on the primary court magistrate, should be a sufficient safeguard of living custom.¹⁶ The decision of the primary court is by majority opinion of the magistrate and the assessors.

It was emphasized by the magistrates that most of the cases involving women fall under customary law and that, therefore, they start in primary courts. Appeals from these primary courts are argued at the District Court, High Court and Court of Appeal, in that order. Moreover, by virtue of section 4(2) (c) of the Appellate Jurisdiction Act, No.15 of 1979 cases commenced in primary courts may not be admitted to the Court of Appeal unless Certified that a point of law is involved by the High Court, which decision is, procedurally,

appealable to the Court of Appeal, before the appeal can be filed and heard on merit. This procedural requirement raises the stake for appeal to the final court in inheritance disputes based on Customary law.

Alternative Forum for Dispute Settlement

(a) The Regional Social Welfare Office for Kagera Region

The Regional Social Welfare office in Kagera Region is located in Bukoba town. Besides handling matrimonial and affiliation disputes, it also does provide "social services and supplies" for which there is a special Section. According to Mr. Mugyabuso, the Regional Social Welfare Officer, one of the function is to offer housing assistance for the disabled and widows. According to him and other social welfare staff, the housing assistance fund is mostly spent in assisting widows rather than the disabled because of the magnitude of the problems of widows. These problems include a house falling down. Nonetheless, the office is careful to screen and assist only those who are really destitute. If there is a possibility of claiming property being held by (often) father - or brother-in-law, the office refers such widow to court instead of dishing out assistance. However, the possibility of a practical solution to real life problems was said to be one of the major user motivations.

(b) Government Offices

The Regional Commissioner's office has set aside an officer dealing with "social affairs". In the officer's experience in both offices, the overwhelming majority of women's problems and complaints were related to inheritance rights in land, while those of men were claims of nepotism and persecution (*majungu*) against the village leadership or allegations of corruption involving court officials. For the last one year that he had been in the regional office, he has handled (and had a written record of) 18 disputes. Of these disputes 10 had been

brought by women while 8 by men. Out of the 10 women's disputes, 8 were about inheritance rights over land. The age of complaints ranged from 8 years to 100 years. All in all, the staff at the Regional Commissioner's office in Bukoba had formed a general impression that inheritance rights were of significant concern to women in the region. This reality is explained by the fact that women gain access to land mostly through inheritance and that such land is governed by the conservative customary land tenure that has already been critically described.

(c) Party Offices

The ruling party (CCM) offices have often been utilised to settle interpersonal disputes at all levels from the cell level branch, District and Regional office levels, with most activity at cell level (Njohole 1975; Du Bow 1973, Quorro 1975; Mshagama 1975 and Kafanabo 1975). However, sensitive disputes touching on people's customs such as inheritance and land, are not encouraged. Instead, parties are referred to "appropriate forums" (*Vyombo vinavyohusika*), that is, the clan councils and law courts. Women complainants, if they insisted on being assisted, were referred to the women's national organisation, Umoja wa Wanawake Tanzania (UWT) which is housed in the same building as the Regional and District ruling Party headquarters.

The UWT officials reported to have received many inheritance related complaints from widows in rural and urban areas who had desperately sought external intervention. Some of these women were encountered by the researcher in the course of the field research for this study. But in the years between 1985 and December 1991, the District Party Office had handled only one inheritance dispute which originated from Katoma Party Branch, on 'appeal' to the

District office. That case involved an old widow and her heir son. It had not been concluded in more than five years.

In conclusion, then, there is no homogeneity in matters dealing with Succession/Inheritance. A lot still needs to be done in law and in practice to ensure that women acquire optimal property rights.

Endnotes

1. There is authority to show that the Indian Succession Act, 1865 does not apply to Africans who are Christians.
2. Interpretation of Laws and General Clauses Act 1972 [Cap.1.; S. 2(1)]
3. Volume 2 No. 2 December 1988 Tanzania Law Reform Bulletin. p 56, 2. The Declaration set out in the First, Second and Third schedules... the areas subject to the jurisdiction of Chunya, Dodoma, Kasulu, Kibondo, Kigoma, Kondoa, Nanyoni, Maswa, Mbeya, Mpwapwa, Ngara, Njombe, Shinyanga, Singida, Songea, Ufipa, and Ukerewe District Council and to be binding upon Africans, to whom the local customary law relates. It was extended to many more areas.
4. Decision by Said, J. (as he then was) in Donald s/o Musa v. Tutito s/o Yonathan, [1967] HCD No. 118.
5. (pc) Civil Appeal No. 70 of 1989 (HC. Unreported.)
6. See the Commission of Inquiry Act (Cap. 102) Kenya pg. 10 para. 38.
7. See also the Commission of Inquiry Act (Cap. 102) (Kenya).
8. Sawyer, G.F.A (Ed.) East African Law and Social Change E.A.P. Nairobi 1967 1967 pp 142-155
9. On a widow's right of residence see Scholastica Benedict v. Martin Benedict Civil Appeal No. 26 of 1988 (CA unreported).
10. Part IV of the Law of Marriage Act 1971 (Act. No.5 of 1971).
11. [HUSSEIN MBWANA VS. AMIRI CHONGWE [1963] 10 DALC 4; RE ESTATE OF THE LATE SULEMAN KUSUNDWA [1965] A 247; IN THE MATTER OF THE LATE SALUM OMAR MKEREMI [1973] LRT n. 80; TATU ABDALLAH VS. WAZIRI MUSSA [1975] LRT n. 7; SHARIFA SAID VS. RAJABU SAID [1976] LRT n.52.]
12. Repealing and re-enacting the Magistrates' Courts Act, 1963.
13. See Nyalali, C.J, in Scholastica Benedict vs Martin Benedict Civil appeal No. 26 of 1988 (unreported).
14. Which is clan land under GN 279/63
15. Note here the individualisation of disputes replacing clan lineage alliance (Moore 1986: 168).
16. In fact, if a primary court magistrate disagrees with the assessors on a point of fact, he/she has to record his/her reason for so doing.